

1 ENGROSSED HOUSE
2 BILL NO. 1937

By: Kannady and Lowe of the
House

3 and

4 Green of the Senate
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9 An Act relating to schools; amending Section 1,
10 Chapter 297, O.S.L. 2024 (70 O.S. Supp. 2025, Section
11 6-401), which relates to student communication;
12 defining term; requiring a corroborated report in
13 order to place school personnel on administrative
14 leave during an investigation; removing requirement
that incidents be noted in employee files; providing
for reinstatement under certain circumstances;
requiring inclusion of finding in employee file;
providing an effective date; and declaring an
emergency.

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18 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

19 SECTION 1. AMENDATORY Section 1, Chapter 297, O.S.L.
20 2024 (70 O.S. Supp. 2025, Section 6-401), is amended to read as
21 follows:

22 Section 6-401. A. As used in this section:

23 1. "Electronic or digital communication" includes, but is not
24 limited to, emails, text messages, instant messages, direct

1 messages, social media messages, messages sent through software
2 applications, and any other electronic or digital means of
3 communication; ~~and~~

4 2. "School personnel" means teachers, coaches, administrators,
5 school bus drivers, or any other persons employed full-time or part-
6 time by a public school or charter school; and

7 3. "Student" means a person enrolled in a public school or
8 charter school in this state receiving primary or secondary
9 education to obtain a standard high school diploma or high school
10 equivalency diploma. Student does not mean a person who holds a
11 standard high school diploma or high school equivalency diploma.

12 B. School personnel engaging in electronic or digital
13 communication with an individual student shall include the student's
14 parent or legal guardian in any electronic or digital communication,
15 unless such communication is on a school-approved platform and
16 related to school and academic communications.

17 C. Exceptions to the requirement in subsection B of this
18 section may be made in case of an emergency as determined by the
19 local school board, subject to subsequent notification to the parent
20 or legal guardian. School personnel shall make reasonable efforts
21 to use school-approved platforms, systems, or applications that
22 allow automatic inclusion of parents or legal guardians in
23 communications with students.

1 D. Schools shall provide training, developed by the State
2 Department of Education, for school personnel on the student
3 communication requirements of this section.

4 E. Any school personnel who is ~~reported to be~~ the subject of a
5 corroborated report of being in violation of subsection B of this
6 section shall be put on administrative leave while the school
7 district investigates the incident and notifies the board of
8 education. If the investigation finds that no misconduct occurred,
9 ~~the school personnel shall be reinstated and~~ the incident shall not
10 be noted in the school personnel's employee file. If the school
11 personnel was placed on administrative leave during the
12 investigation of the incident but the investigation finds that no
13 misconduct occurred, the school personnel shall be reinstated and
14 the school personnel's employee file shall include a note of the
15 finding of no misconduct. If the investigation finds misconduct
16 occurred, the school personnel shall be disciplined according to the
17 school district board of education's policy, up to and including
18 termination of employment, and the incident shall be reported to law
19 enforcement pursuant to Section 1210.163 of ~~Title 70 of the Oklahoma~~
20 ~~Statutes~~ this title.

21 SECTION 2. This act shall become effective July 1, 2026.

22 SECTION 3. It being immediately necessary for the preservation
23 of the public peace, health or safety, an emergency is hereby
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1 declared to exist, by reason whereof this act shall take effect and
2 be in full force from and after its passage and approval.

3 Passed the House of Representatives the 10th day of March, 2026.

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Presiding Officer of the House
of Representatives

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8 Passed the Senate the _____ day of _____, 2026.

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Presiding Officer of the Senate

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